

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
ROGER REYES,

Plaintiff,

-against-

THE CITY OF NEW YORK,
FRANKLYN SEPULVEDA,
IVAN RODRIGUEZ and ANGEL DALIZ,

Defendants.

----- X

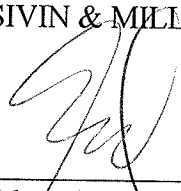
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 23, 2014

SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

The City of New York: 100 Church Street, New York, NY 10007

Franklyn Sepulveda (Shield No. 2244): c/o Organized Crime Control Bureau, One Police Plaza, Rm. 1310, New York, NY 10038

Ivan Rodriguez (Shield No. 3235): Narcotics Borough Manhattan, One Police Plaza, Rm. 1100, New York, NY 10038

Angel Daliz (Shield No. 6826): Narcotics Borough Manhattan, One Police Plaza, Rm. 1100, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
ROGER REYES,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
FRANKLYN SEPULVEDA,
IVAN RODRIGUEZ and ANGEL DALIZ,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Bronx, City and State of New York.

2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. That prior to the institution of this action, and within ninety days of the accrual of some of the causes of action herein, a Notice of Claim and Intention to Sue on behalf of plaintiff was duly served on defendants; that this action was not commenced until the expiration of thirty (30) days after such Notice of Claim and Intention to Sue was served, and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

4. That at all times herein mentioned, the City owned, operated, controlled,

managed, and maintained the New York Police Department (hereinafter the “NYPD”).

5. That at all times herein mentioned, defendant Franklyn Sepulveda (Shield No. 2244) (hereinafter “Sepulveda”) was and is a detective employed by the NYPD.

6. That at all times herein mentioned, Sepulveda was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Sepulveda was acting under color of state law.

8. That at all times herein mentioned, defendant Ivan Rodriguez (Shield No. 3235) (hereinafter “Rodriguez”) was and is a detective employed by the NYPD.

9. That at all times herein mentioned, Rodriguez was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Rodriguez was acting under color of state law.

11. That at all times herein mentioned, defendant Angel Daliz (Shield No. 6826) (hereinafter “Daliz”) was and is a detective employed by the NYPD.

12. That at all times herein mentioned, Daliz was acting within the course and scope of his employment with the NYPD.

13. That at all times herein mentioned, Daliz was acting under color of state law.

THE FACTS

14. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

15. That on or about July 18, 2013, in the County of New York, City and State of New York, the City of New York, by and through its agents, servants and/or employees, including

officers with the NYPD, including Sepulveda, Rodriguez, and Daliz, without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense or violation, and without otherwise being justified, forcibly stopped, seized, and searched plaintiff.

16. That after forcibly stopping, seizing, and searching plaintiff, the aforementioned officers forcibly pushed plaintiff, threw him against a police vehicle, and applied handcuffs to plaintiff, all of which was done without plaintiff's consent and against his will.

17. That defendants then arrested and imprisoned plaintiff, again without a warrant and without probable cause, reasonable suspicion, or justification, and without permission or consent.

18. That defendants then continued forcibly to detain plaintiff against his will at various locations, including a police precinct and Central Booking, until plaintiff was released from custody approximately one week later.

19. That on or about July 19, 2013, defendants also initiated or caused to be initiated a criminal prosecution against plaintiff, charging plaintiff with crimes of which he was innocent and of which defendants knew plaintiff to be innocent.

20. That as a consequence of the aforementioned prosecution, plaintiff was required to appear in court and was otherwise deprived of his liberty.

21. That defendants herein lacked probable cause to prosecute plaintiff.

22. That on or about February 13, 2014, the criminal charges against plaintiff were dismissed and the criminal proceeding resulted in a termination favorable to plaintiff.

23. That each of the individually named police officers observed the aforementioned conduct by his fellow officers, and each defendant had the ability and opportunity

to intervene to prevent or stop the aforementioned conduct.

24. That despite having observed the aforementioned conduct by his fellow officers, and having had the ability and opportunity to intervene to prevent or stop the aforementioned conduct, each of the individually named police officers failed and refused to intervene in any manner, thereby permitting the aforementioned conduct to take place or continue.

25. That the aforesaid actions by Sepulveda, Rodriguez, and Daliz were intentional and malicious in nature.

26. That as a result of the foregoing, plaintiff suffered and continues to suffer physical, emotional, and psychological injuries, loss of liberty, embarrassment, humiliation, and economic loss.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery)

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That the aforementioned actions of defendants constitute an assault and battery against plaintiff for which the officers are liable under New York State law and for which the City is liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the aforementioned actions of defendants constitute a false arrest and false imprisonment of plaintiff for which the officers are liable under New York State law and for which the City is liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforementioned actions of defendants constitute a malicious prosecution of plaintiff for which the officers are liable under New York State law and for which the City is liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS
SEPULVEDA, RODRIGUEZ and DALIZ
(42 USC § 1983 Claim Arising From Fourth Amendment Violation)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforementioned actions of defendants Sepulveda, Rodriguez, and Daliz constitute an illegal search and seizure and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth Amendment and Fourteenth Amendment to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

FIFTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training and Retention)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforesaid incident and resulting damage to plaintiff was due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention of the involved NYPD officers, including Sepulveda, Rodriguez, and Daliz.

SIXTH CAUSE OF ACTION AGAINST THE CITY
(“Monell” Claim)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforesaid incident and resulting damage to plaintiff was due to a deliberate indifference by the City to a pattern of unconstitutional conduct by Sepulveda, Rodriguez, and Daliz, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS
SEPULVEDA, RODRIGUEZ and DALIZ
(Violation of Article I, § 12 of the New York State Constitution)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforementioned actions of defendants Sepulveda, Rodriguez, and Daliz constitute an illegal search and seizure of plaintiff in violation of rights guaranteed to plaintiff under the Article I, § 12 of the New York State Constitution.

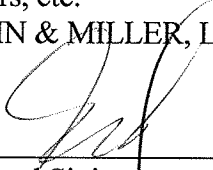
41. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Sepulveda, Rodriguez, and Daliz, and attorney’s fees against all defendants pursuant to 42 USC § 1988, and plaintiff also demands the costs and

disbursements of this action.

Dated: New York, New York
July 23, 2014

Yours, etc.
SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

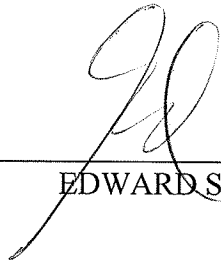
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
October 2, 2012



EDWARD SIVIN

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Year 2014

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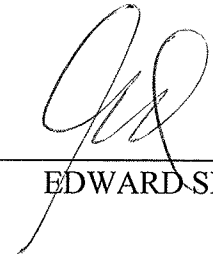
VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
July 23, 2014